



United States Department of the Interior

FISH AND WILDLIFE SERVICE

Ecological Services
4000 Airport Parkway
Cheyenne, Wyoming 82001

GAC ☒

BH ☒

658 ☒

RAC ☒

ES-61411
pd/MINES/wy3365.pd

April 25, 2000

Ms. Georgia Cash
Wyoming Department of Environmental Quality
Land Quality Division
Herschler Building, 3 West
122 W. 25th St.
Cheyenne, WY 82001



Dear Ms. Cash:

Thank you for the notification regarding the annual report for Mountain Cement's Weaver Limestone Quarry (permit number 658) in Albany County, Wyoming. From information presented in the annual report, we understand there was no new acreage disturbance in 1999, and no more surface disturbance is anticipated. Photographs of the permit area indicate the area may provide suitable habitat for nesting mountain plovers. The mountain plover has been proposed for listing as a threatened species under the Endangered Species Act of 1973, as amended. Mountain plovers are known to occur in the Laramie area. Although no new acreage is proposed for disturbance, all precautions should be taken to ensure current mining activities do not impact this species.

If you have further questions on this subject, please contact Pat Deibert of my staff at the letterhead address or phone (307) 772-2374, extension 26.

Sincerely,

Mary E Jennings
for Michael M. Long
Field Supervisor
Wyoming Field Office

cc: Director, WGFD, Cheyenne, WY

This is your future. Don't leave it blank. - Support the 2000 Census.



The State
of Wyoming



Jim Geringer, Governor

Department of Environmental Quality

Herschler Building • 122 West 25th Street • Cheyenne, Wyoming 82002

ADMIN/OUTREACH	ABANDONED MINES	AIR QUALITY	INDUSTRIAL SITING	LAND QUALITY	SOLID & HAZ. WASTE	WATER QUALITY
(307) 777-7758 FAX 777-3610	(307) 777-6145 FAX 777-6462	(307) 777-7391 FAX 777-5616	(307) 777-7369 FAX 777-6937	(307) 777-7756 FAX 777-5864	(307) 777-7752 FAX 777-5973	(307) 777-7781 FAX 777-5973

April 3, 2000

Mr. Scott Nielson
Mountain Cement Co.
5 Sand Creek Road
Laramie, WY 82070

**RE: Permit 658, Mountain Cement Company (MCC), Weaver Quarry,
1999-2000 Annual Report Review**

Dear Mr. Nielson:

The Wyoming Department of Environmental Quality (WDEQ) Land Quality Division (LQD) received the above reference report on February 29, 2000. Attached is a copy of the LQD's review of that Annual Report. Please note that the Annual Report Map has not been updated to include sediment control structures as requested in the 1998-1999 Annual Report Review.

LQD has reviewed the reclamation bond for the existing and projected one year of disturbance and has determined an amount of \$50,000.00 would be required to reclaim the site. LQD currently holds a bond of \$22,000.00 and therefore is requiring an increase of \$28,000.00..

If you should have any questions regarding this letter or the attached review, please feel free to contact the District I office.

Sincerely,

Georgia A. Cash
District I Supervisor
Land Quality Division

GAC:bh
Attachment/ Annual Report Review

MEMORANDUM

TO: Georgia Cash, District I Supervisor *cc*
FROM: Bill Hogg, District I
DATE: March 14, 2000
SUBJECT: Permit 658, Mountain Cement Company (MCC), Weaver Quarry
1999-2000 Annual Report Review

INTRODUCTION

This Mining Permit was issued February 29, 1996 for 1,372.5 acres. The total expected disturbance of the mining operation is 511 acres. The permit is located about 10 miles south of Laramie Wyoming on the east side of Highway 287. The bond held for the disturbance \$22,000.00. The Land Quality Division (LQD) received the 1999-2000 Annual Report (AR) on February 29, 2000 and covers the time period from March 1, 1999 through February 28, 2000. The 658 permit was last inspected on July 21, 1997.

The location of safety fence around the mine disturbance has been added to this years Annual Report Map as requested in comment #10 in the 1998-1999 Annual Report.

Township and range identification has been added to the Annual Report Map as requested in comment #8 in the 1998-1999 Annual Report.

Test results from well P3484 (G6186, February 14, 2000) have been submitted with the Annual Report as requested in comment #4 in the 1998-1999 Annual Report. The sample results were reviewed by Paula Cutillo. As the results are the first ground water sample results that has been submitted, it will be several years before any trends can be established to determine the affects of mining.

The 1999-2000 AR contained the following information:

- No disturbance has occurred during the report period with a total of 19.2 acres total disturbance life of mine.
- No Reclamation was completed during the report period and no reclamation has occurred under Permit 658.
- A total of 373,396 tons of Limestone have been mined to date. In 1997 (124,376 tons), 1998 (100,500 tons) and 1999 (148,520 tons).

- No overburden was salvaged during the report period and 15,000 yards are stockpiled for use in reclamation since mining has started.
- No topsoil was salvaged during the report period and 13,000 yards of topsoil are available for use in reclamation. This would be 5 inches over the 19.2 acres.
- The permit was active during the report period and mining will continue to the west this year. The projected mining area has already been stripped of topsoil and included in the 19.2 acres of disturbance. No reclamation is planned for the next report period.

COMMENTS

1. MCC is not meeting the mine plan schedule approved in the permit. Page MP-8 of the permit states that the mine plan schedule is base on the use of 300,000 tons per year. Page MP-2 states that the life of mine is between 25 and 30 years. Page D5-3 states that 11.5 million tons of limestone is to be mined. In the first three full years of operation only 373,396 tons of limestone. This is only about 1/3 of the production permitted and at the present rate of mining, mining will not cease until year 2088. It is recommended that if the present limestone production trend remains for more than five years at 1/3 of the permitted production, that a mine plan revision be required. **(BH)**
2. MCC has not upgraded the Annual Report Map to show sediment control structures on the Annual Report Map as requested in comment #9 in the 1998-1999 Annual Report review. Please revise as requested and include in all future annual reports. **(BH)**
3. MCC bond estimate for reclaiming the 19.2 acres of disturbance is \$47,800.00. LQD's March 23, 1998 bond estimate for the 19.2 acres of disturbance plus projected disturbance was \$48,857.50. The current bond in place for this disturbance is \$22,000.00. MCC letter of December 15, 1999 concerning bond issues, requested that the bond be established during the AR review. LQD recommends that the bond estimate be established at \$50,000.00. **(BH)**



MOUNTAIN
CEMENT COMPANY

5 Sand Creek Rd.
Laramie, Wyoming 82070
(307) 745-4879

GAC
File —

February 28, 2000

Ms. Georgia Cash
Wyoming Department of Environmental Quality
Land Quality Division
Herschler Bldg. - 3rd Floor
122 West 25th Street
Cheyenne, WY 82002

RE: Annual Reports, Permit No. 658



Dear Ms. Cash:

I have enclosed the annual mine report for Mountain Cement Company's Weaver Limestone Quarry, Permit No. 658.

Please call me at (307) 745-4879 ext. 121 if you have questions.

Sincerely,

Scott Nielson
Environmental Manager

Enclosures

**MOUNTAIN CEMENT COMPANY
PERMIT 658-WEAVER LIMESTONE QUARRY**

**ANNUAL REPORT
AND
MINE AND RECLAMATION PLANS**

MARCH 1, 1999-FEBRUARY 28, 2000

SUBMITTED TO:

**WYOMING DEPARTMENT OF ENVIRONMENTAL QUALITY
LAND QUALITY
HERSCHLER BUILDING
CHEYENNE, WYOMING**

PREPARED BY:

**MOUNTAIN CEMENT COMPANY
5 SAND CREEK ROAD
LARAMIE, WY
(307) 745-4879**



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APPENDIX

Annual Report Map, March 1, 1999 - February 28, 2000



Land Quality Division
Districts I, II & III
Required Annual Report Information

FOR LARGE MINING OPERATIONS

RE: Wyoming Environmental Quality as Amended §35-11-411, Annual Report

I.

A.	Name of Permittee.	MOUNTAIN CEMENT CO.
B.	Address.	5 SAND CREEK ROAD LARAMIE, WY 82070
C.	Mining Permit Number	658
D.	Date of Permit Issuance (and any Amendment).	February 29, 1996
E.	Mineral(s) Mined.	LIMESTONE
F.	State and Federal Mineral Lease Numbers.	NONE

II. Time period covered by the report. **MARCH 1, 1999 TO FEBRUARY 28, 2000**

III. Mining:

- (a) Tabulate acreage disturbed (by pits, roads, facilities, etc.) during the report period and illustrate on map.
0 acres disturbed during 1999-2000 report period
- (b) Tabulate acreage affected to date by years and illustrate on map.
19.2 acres disturbed during 1997
19.2 acres total since mine start-up
- (c) Tabulate all topsoil stockpile volumes, dated of stockpiling and illustrate on map.
2,300 CY-Road (1997)
10,700 CY-Mining Area (1997)
13,000 CY total since mine start
- (d) Tabulate all out-of-pit spoil volumes, dates of placement and illustrate on map.
15,000 CY overburden (1997)
15,000 CY total since mine start
- (e) Tabulate quantity of commodity mined by years.
124,376 tons limestone mined 1997
100,500 tons limestone mined 1998
148,520 tons limestone mined 1999
373,396 tons limestone since mine start-up
- (f) Described any new construction during the report period and illustrate on map; include:
 - 1. Shop facilities, erection sites. **None**
 - 2. Roads. **None**

3. Culverts. **None**
4. Diversion ditches, collector ditches, interceptor ditches, etc. **None**
5. Sediment ponds, containment ponds. **None**
6. Monitoring sites. **None**

g) Describe any environmental problem areas and a proposed plan for mitigating them – illustrate on map; include:

1. Pit stability problems. **None**
2. Subsidence. **None**
3. Accidental water discharge, dam failure, etc. **None**
4. Slumping or sliding. **None**
5. Revegetation problem areas. **None**

4. Reclamation:

A. Tabulate the acreage completed during the report period and illustrate on map. Distinguish between: **None completed this report period.**

1. Backfilled, graded, and contoured. Including date of approval for coal permits.
2. Topsoiled.
3. Seeded.
4. Reseeded.
5. Indicate where special construction or reclamation practices were used such as for sand bodies or alluvial material.

B. Submit a map showing the reconstructed contours. The map must be the same scale and contour interval as the PMT map in the approved permit. **None completed.**

C. Tabulate acreage reclaimed (seeded with permanent seed mix) to date by years and illustrate on map. **None completed this report period.**

D. Describe reclamation procedures used during the report period: **No reclamation occurred during this report period.**

1. Depth of topsoil applied. Indicate whether from stockpile or directly applied.
2. Type of seed is used for seeding during the report period.
3. Dates of seeding during the report period.
4. Seeding procedures used.
5. Rate of seed application.
6. Type and rate of any fertilizer applied.
7. Type and rate of mulch applied.
8. Rate of irrigation water applied.

9. Any deviations to the approved reclamation plan including, in addition to the items, above, changes to the contour or location of post mining features.

E. Describe results of previous revegetation efforts; include:

1. Types of seed that have germinated and are growing. **None**
2. Types of seed that are not growing successfully. **None**
3. Areas experiencing problems with weeds and weed types. **None**
4. Significant erosional problems. **None**
5. Areas of unsuitable overburden on the surface. **None**
6. Procedures used or proposed to correct these problems. **N/A**

F. Summarize the actual reclamation costs incurred during the report period. Costs should be itemized for each operation (i.e. grading, topsoil replacement, seeding, etc.) and for each type of disturbance (i.e. spoil, haul roads, facilities removal, etc.) on a per-acre basis. **None**

5. Describe in detail mining plans for the coming year including revised time schedules and all proposed deviations from previously approved plans. Acreages should be tabulated and illustrated on a map. **See Mine Plan Report and Annual Report Map.**
6. Describe in detail reclamation plans for the coming year including revised time schedules and deviations from previously approved plans. Acreages should be tabulated and illustrated on a map. **See Reclamation Plan Report.**

NOTE:

On items 5 and 6 above, any proposed deviation from the approved mine and reclamation plan must be described in detail. The proposed mining and reclamation plans will be reviewed and the operator will be notified if further information is required. "Significant" deviations will require permit revision application (Form 11) and public notice pursuant to Chapter VII Section 2 of Land Quality Division Noncoal Regulations.

7. Describe in detail all monitoring activities during the report period, summarize the data, describe procedures to correct any noted problems and deviations from previously approved methods, including:
- A. Groundwater analyses. **Groundwater sampling data included in the Appendix.**
 - B. Surface water analyses and discharge data. **None**
 - C. Precipitation data. **None**
 - D. Subsidence monitoring. **None**

- E. Overburden analyses. **None**
 - F. Topsoil quantities - compare calculated and actual. **N/A**
 - G. Vegetation data. **None**
 - H. Wildlife data. **None**
 - I. A map showing and identifying monitoring locations. **None**
8. Operator's Reclamation Performance Bond Estimate as required by Wyoming Statute §35-11-417. Reclamation cost estimates should be itemized in detail to reflect the actual estimated costs of reclaiming all lands which have been affected to date and those lands to be affected during the next report period. Costs must reflect procedures as specified in the approved mine and reclamation plan. The estimated cost of dismantling and disposal of all facilities and structures must be included. Salvage value will not be used to offset bonding requirements. Reclamation projected for the coming year will not be used to offset bonding requirements. Pit backfill costs must reflect actual yardages to be moved. Actual yardages to be moved will reflect the removal or placement of additional material to correct any deviations between the PMT map and the map submitted for part 4.(b). **See Table II**
9. Supply any additional information as requested by the Division related to:
- A. Notices of violation. **None**
 - B. Orders. **None**
 - C. Permit stipulations; and **None**
 - D. Other special conditions. **None**
10. All drill holes used for immediate developmental expansion of the advancing pit(s) shall be tabulated by location and depth and shown on the mining plan map. Pursuant to W.S. §35-11-404(e), all drill holes used for exploration shall be reported to the LQD Abandoned Drill Hole Program Supervisor and the State Engineer. **None**

INTRODUCTION

Mountain Cement Company continued to mine at the Weaver Quarry WDEQ/LQD Permit No. 658 during the past report period. The last mining activity occurred during August and September 1999. This activity was located in the northwest corner of the permit area, as described in the Mine Plan.

MINE PLAN

The following mine plan describes the actual mining activities for the 1999-2000 report period, and likely future mining operations for the 2000-2001 report period at Mountain Cement Company's Weaver Limestone Quarry, Permit No. 658.

Past Mining Activities: Mining took place in the north west corner of the permit area in the SW ¼ of Section 26 during the 1999-2000 report period. No additional disturbance occurred since the mining was in an area already stripped of topsoil and overburden. About 10,700 cubic yards of topsoil and 15,000 cubic yards of overburden are contained in two stockpiles, both of which are toe ditched. An additional 2,300 cubic yards of topsoil is stockpiled along the side of the haulroad.

Future Mining Activities: Mountain Cement plans to continue mining the site during the next report period. Mining will occur in the same pit, expanding it to the west. It will not be necessary to disturb any more land since the area around the pit has already been stripped of topsoil and overburden in 1997.

RECLAMATION PLAN

The following reclamation plan describes actual past reclamation and expected future efforts.

Past Reclamation Activities:

Reclamation has not yet been initiated at this mine site. 1997-1998 was the first year limestone was quarried at this site.

Future Reclamation Activities:

No reclamation is planned for the next report period. Reclamation will follow the Reclamation Plan, which states that reclamation of each mine sequence section will begin within two years after mining is completed in that section. Mountain Cement is still mining within Section I of the Mine Plan sequence. Reclamation will begin after mining moves into Section II.

ESTIMATED RECLAMATION COSTS

Mountain Cement Company reclamation performance bond estimate for current disturbances and expected 2000-2001 report disturbances is detailed in Table II.



TABLE I - Description of Weaver Quarry lands. (Includes acreage projected to be disturbed during the upcoming report period)

LAND DESCRIPTION	ACRES
PERMIT AREA	1372.5
AFFECTED AREA	19.2
PROECTED DISTURBANCE FOR 1999-2000	0.0
LANDS REQUIRING AREA BOND COST	19.2
LANDS REQUIRING FULL INCREMENTAL BOND COST	19.2
LANDS REQUIRING PARTIAL INCREMENTAL BOND COST (Reseeding)	0
LANDS WITH REQUESTED FULL BOND RELEASE, > 2 YEARS	0
LANDS W/ APPROVED FULL BOND RELEASE	0.0
SUBTOTAL(INCREMENTAL BOND TOTAL)	19.2
NATIVE LANDS	1353.3
TOTAL OF BONDED, BOND RELEASED AND NATIVE LANDS	1372.5

TABLE II - Estimated Reclamation Costs for Disturbances through February 28, 2000 and Projected Disturbances for the 2000-2001 Report Period, Weaver Quarry, LQD Permit No. 658.

BOND TYPE		APPENDIX LQD, GL 12	AVERAGE ONE-WAY HAUL, ft	UNIT	UNIT COST \$/unit	TOTAL, \$
Area Bond	Backfill + Recontouring	A,B,C,D, E,E1,F,G	750	15,000 CY	5% Res Grd 0.60	9,000
Incremental Bond	Misc. Overburden Redist.	A-G, E1	N/A	CY		
	Demolition (culverts)	H-K	N/A	5 UNITS (50 ft sections)	145.00/50 ft section + 8,500	9,225
	Scarification or Ripping (Roads)	P, 11	N/A	5.2 AC	581.67	3,024
	Topsoil Redist.	C, D	750	13,000 CY	0.60	7,800
	Final Grading	G	N/A	19.2 AC	33.27	640
	Seeding only	Q	N/A	0 AC	200.00	0
	Seed, Mulch, Prepare soil + Fencing	Q	N/A	19.2 AC 0 ft	525.00 1.70	10,100

SUBTOTAL \$39,789
20% DEQ CONTINGENCY \$ 7,958

TOTAL \$47,800

Total Land Quality Bond Amount = \$22,000

Appendix



Scott Nielson
Mountain Cement Company
5 Sand Creek Road
Laramie, Wy, 82070

Date: February 14, 2000
Request Number: 16790
Lab Number: G6186
Sample ID: Weaver 2-7-00 9:00

REPORT OF ANALYSIS

Hardness, mg/L	198
Bicarbonate (as CaCO ₃), mg/L	193
Carbonate (as CaCO ₃), mg/L	< 1
pH	7.79
Chloride, mg/L	2.65
Nitrate, As N, mg/L	1.11
Specific Conductivity, μ mhos/cm @ 25°C	387
Total Dissolved Solids, mg/L	260
Total Petroleum Hydrocarbons, mg/L	0.2



Monte L. Ellis

Monte L. Ellis
Laboratory Manager

MLE:tab



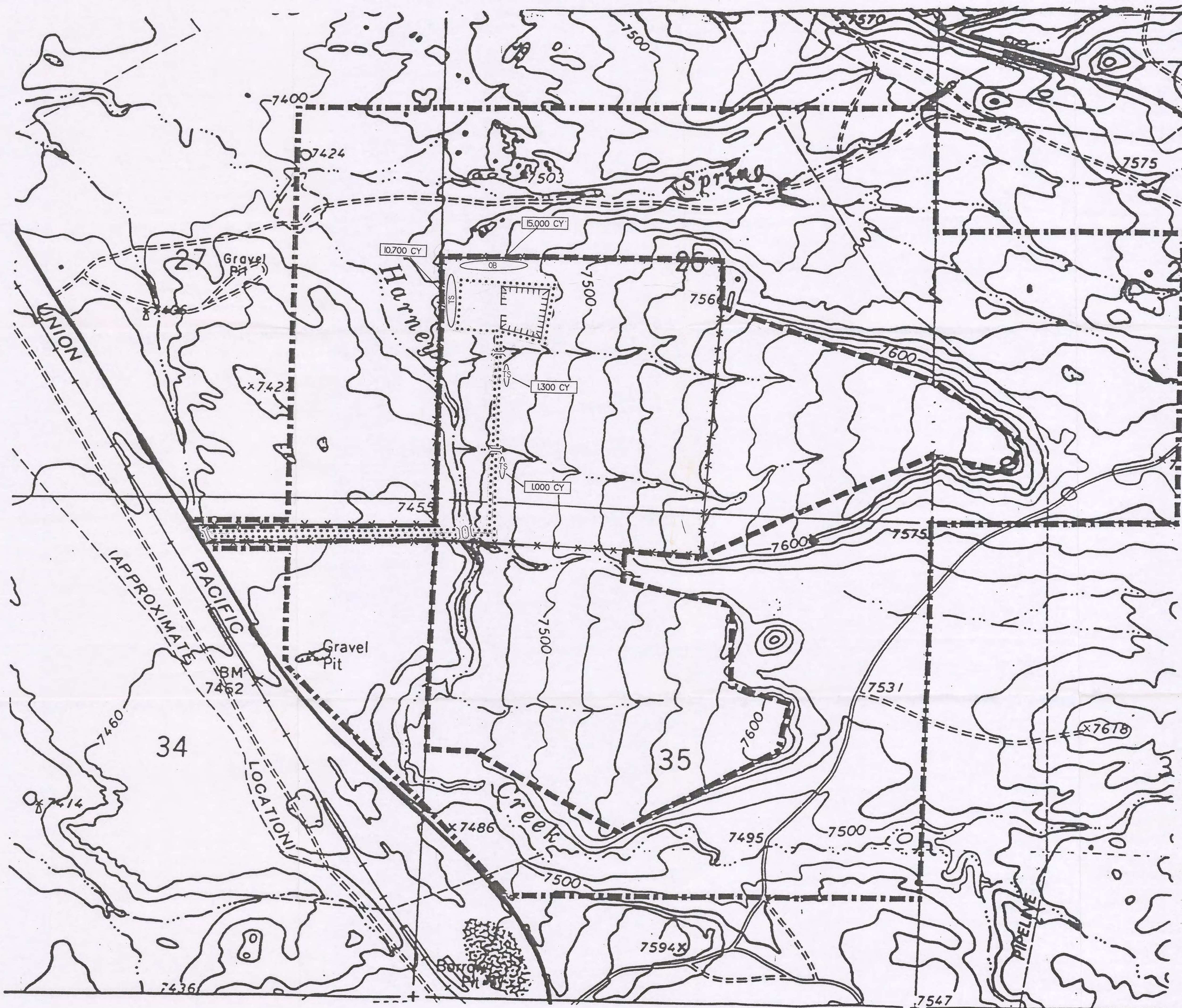
WYOMING ANALYTICAL LABORATORIES, INC.

1660 Harrison St.
Laramie, WY 82070

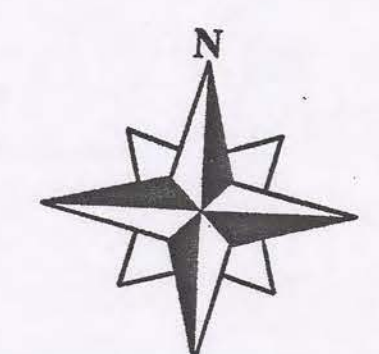
wallaramie@aol.com

(307) 742-7995
Fax: (307) 721-8956





LEGEND	
TS	TOPSOIL STOCKPILE
OB	OVERBURDEN STOCKPILE
...	DISTURBED BOUNDARY
---	PERMIT BOUNDARY
- - -	AFFECTED AREA BOUNDARY
	PIT WALLS
	CULVERT
-x-	FENCE LINE



Annual Report Map
WEAVER LIMESTONE QUARRY
 Permit No. 658
 March 1, 1999 to February 28, 2000
 Mountain Cement Company
 5 Sand Creek Rd
 Laramie, Wyoming
 (307) 745-4879
 Township 14N, Range 73W, Sections 26 & 35
 SCALE 1" = 500'
 CONTOUR INTERVAL 20'
 Revised 2/23/00 SN

